

22PR00572 Guardianship of Arian Anthony Santos

County: santa-barbara

Division: Guardianship

Department: 4 SM-Cook

Hearing date: 2026-07-06

Motion: Review: Second Accounting and Report

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Tentative Ruling: Guardianship of Arian Anthony Santos

Case Number

22PR00572

Case Type

Guardianship

Hearing Date / Time

Mon, 07/06/2026 - 08:30

Nature of Proceedings

Review: Second Accounting and Report

Tentative Ruling

Probate Notes:

Appearances permitted to address notes, but not required.

After review of the Second Supplement filed on June 22, 2026, the following is noted for the Court:

Reduction of Attorney's Fees recommended. The requested attorney's fees of \$5,547.75 should only be approved for \$3,950, because several billing entries reveal what is 1) clerical work and 2) reveal entries formally referred to as "duplicative work" or "padding," and more commonly known as "remedial work" to correct Court-identified discrepancies in the accounting. This is confirmed in the Second Supplement attorney for the Guardian filed on June 22, 2026, where attorney confirmed that some of the time billed for the First Accounting was to correct discrepancies in the First Accounting that were identified in the

Probate Notes.

Attorney's fees are within the sound discretion of the Court, and can be reduced for a multitude of reasons. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096.) One of those factors is "padding." (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 556 ["padding' in the form of inefficient or duplicative efforts is not subject to compensation."].)

In this case, the account was simple, straight forward, and was admittedly compiled by an accountant paid out of the estate. (2nd Sup. ¶8a.) In that accounting, the billing statement from the attorney shows work done on the first accounting to remedy discrepancies noted by the court that the attorney needed to correct. This remedial work consisted of a sizable portion of the 7.95 hours billed for the First Accounting, for which some of those fees this Court already approved.

As for the Second Accounting, the descriptions of the work performed reveal that much of the work performed was for work that was clerical, not legal in nature, and the account was so simple that hardly any attorney's fees need have been generated. The rate this court usually allows for clerical work is \$65 per hour.

Therefore, the fee request in this case should be disallowed in part, leaving a fee award of \$3,950 plus \$501.10 in agreed-upon costs, for a total for \$4,451.10.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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